

APPENDIX I*

ILLUSTRATIVE LIST OF COSMETIC PRODUCTS BY CATEGORIES

I. BACKGROUND

The definition of a cosmetic product which has been adopted by the ACCSQ Product Working Group on Cosmetics is that of the European Directive. In order to understand the thought processes behind the words it does help to look at the way that the original 1976 definition was modified in 1993.

Original : Any substance or preparation intended for placing in contact with the external parts of the human body ... or with the teeth and mucous membranes of the oral cavity with a view exclusively or principally to cleaning them¹, perfuming them² or protect them³ in order to keep them in good condition⁴ change their appearance⁵ or correct body odour⁶

Current : Any substance or preparation intended to be placed in contact with the external parts of the human body... or with the teeth and the mucous membranes of the oral cavity with a view exclusively or mainly for cleaning them⁷, perfuming them⁸, changing their appearance⁹, and/or correcting body odours¹⁰ and/or protecting¹¹ or keeping them in good condition¹²

By removing the words "in order to" and replacing the three functions (1-3) and three objectives (4-6) by six individual purposes (7-12) the 1993 definition removes several legal anomalies including the one that effectively excluded all decorative products from being cosmetics.

It should be noted that while the phrase "exclusively or principally" has been changed to "exclusively or mainly" reinforces the fact that the regulators recognise that cosmetic products may have functions other than six individually listed.

II. ASEAN ILLUSTRATIVE LIST BY CATEGORY OF COSMETIC PRODUCTS APPEARS IN ATTACHMENT I

This list is not exhaustive and that currently unimagined product forms and types should be considered against the definition of a cosmetic and not the list (such as ASEAN uniqueness.)

* Number of Appendix and Annex is given for easy referend as stated in the ASEAN Agreement on Cosmetics

ANNEX I

ILLUSTRATIVE LIST BY CATEGORY OF COSMETIC PRODUCTS

- Creams, emulsions, lotions, gels and oils for the skin (hands, face, feet, etc.).
- Face masks (with the exception of chemical peeling products).
- Tinted bases (liquids, pastes, powders).
- Make-up powders, after-bath powders, hygienic powders etc.
- Toilet soaps, deodorant soaps, etc.
- Perfumes, toilet waters and eau de Cologne.
- Bath and shower preparations (salts, foams, oils, gels, etc.).
- Depilatories.
- Deodorants and anti-perspirants.
- Hair care products.
 - o hair tints and bleaches,
 - o products for waving, straightening and fixing,
 - o setting products,
 - o cleansing products (lotions, powders, shampoos),
 - o conditioning products (lotions, creams, oils),
 - o hairdressing products (lotions, lacquers, brilliantines).
- Shaving products (creams, foams, lotions, etc.).
- Products for making-up and removing make-up from the face and the eyes
- Products intended for application to the lips.
- Products for care of the teeth and the mouth.
- Products for nail care and make-up.
- Products for external intimate hygiene.
- Sunbathing products.
- Products for tanning without sun.
- Skin-whitening products.
- Anti-wrinkle products